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File No: EXP202302143

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 12/01/2023, a complaint was filed with entry registration number REGAGE23e00002228872 before the Spanish Agency for Data Protection against the CITY COUNCIL OF SAN CRISTÓBAL DE LA LAGUNA (hereinafter, the respondent). The reasons for the complaint are as follows:

According to the complainant, the (...) filed a complaint for workplace harassment against a colleague at the City Council of San Cristóbal de la Laguna.

The complainant asserts that during the processing of the complaint, the operational procedure for the prevention and action regarding workplace harassment was not followed, as the confidentiality of their identity was not guaranteed.

They declare that the established protocol determines that the complaint must be submitted in a sealed envelope and cannot be opened until the Occupational Safety and Health Committee has been convened, a procedure that was not respected because the submitted complaint was handed over to the (...) without notifying anyone from the aforementioned Committee.

After reading the complaint, the (...) met with the complainant and urged them to withdraw the complaint.

The complainant indicates that they recorded that conversation and that another colleague is a witness to all the events that occurred, who also signs the complaint submitted to the Agency. This means that after this leak, all employees of the respondent are aware of the existence of the labor dispute, causing them severe moral and psychological harm.

Along with the complaint document, they provide the submitted complaint (which transcribes part of a conversation held with the accused colleague) and the action protocol for the prevention and action regarding workplace harassment.

SECOND: On 12/04/2023, in accordance with the provisions of Articles 65 and 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the present complaint was deemed accepted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) confers on each control authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigative Actions

Article 67 of the LOPDGDD, in the wording in force at the time of the admission agreement for processing the present procedure, establishes the following regarding preliminary investigative

actions:

“1. Before the adoption of the agreement to initiate the procedure, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure. The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the admission agreement for processing or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication that has been sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

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3/4

III

Expiration of Proceedings

In relation to the preliminary proceedings, the Development Regulation of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its article 122.4 states that “The expiration of the term without a resolution being issued and notified to initiate sanctioning proceedings will result in the expiration of the preliminary proceedings.”

According to the provisions of the transcribed articles, and in accordance with article 67.4 of the LOPDGDD in its wording in force on the date of admission of the complaint, the preliminary proceedings must be understood as expired if, more than twelve months have passed from the date of admission of the complaint, and no resolution has been issued and notified to initiate sanctioning proceedings.

In the present case, the counting of the twelve-month maximum duration of the preliminary investigation proceedings began on 12/04/2023 and is currently still pending completion, so they must be declared expired.

IV

Initiation of New Investigation Proceedings

On the other hand, article 95.3 of the aforementioned LPACAP states that:

“Expiration will not by itself produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, acts and procedures whose content would have remained the same had expiration not occurred may be incorporated into this. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed.”

In this regard, the National Court, in its judgment of July 10, 2013 (JUR 2013\259250), considers that “the declaration of expiration of the preliminary investigation proceedings initiated by the Spanish Agency for Data Protection does not constitute any obstacle for that entity to initiate or restart other preliminary investigation proceedings regarding the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed.”

In the present proceedings, the investigation has proven to be a process of enormous complexity, especially due to the difficulties encountered in obtaining sufficient information and evidence to allow it to continue.

Consequently, since the facts under investigation are not prescribed, instructions are given to the General Sub-Directorate of Data Inspection to initiate new investigation proceedings.

Therefore, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigation proceedings.

SECOND: TO OPEN new investigation proceedings and incorporate into these new proceedings the documentation that integrates the preliminary proceedings declared expired by this act.

THIRD: TO NOTIFY this Resolution to the TOWN HALL OF SAN CRISTÓBAL DE LA LAGUNA and to the complainant party.

Against this resolution, which concludes the administrative route according to the provisions of art.

114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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